THE HONORABLE ROBERT J. BRYAN

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WASHINGTON
AT TACOMA

AILA CURTIS, ET AL, Plaintiffs, v. PEACEHEALTH, LIZ DUNNE, DOUG KOEKKOEK, TODD SALNAS, PATRICK ALLEN AND GOV. KATE BROWN Defendants	Case No.: 3:23-cv-05741-RJB **PLAINTIFFS' OPPOSITION TO MOTION TO DISMISS BY PEACEHEALTH** **NOTE ON MOTION CALENDAR: JANUARY 12, 2024** **ORAL ARGUMENT REQUESTED**

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

TABLE OF CONTENTS

I.	Introduction	5
II.	Legal Standard	5
III.	PeaceHealth's Logical Fallacies	6
IV.	State Actor	6
	A. State Action Background	7
	B. The Public Function Test	17
	C. Symbiotic Relationship and Joint Activity Test	21
V.	Comirnaty v. Pfizer-BioNTech COVID-19 Vaccine	29
VI.	21 U.S.C. §360bbb-3 Under §1983	37
VII.	Defendants' Arguments	38
VIII.	Oral Argument Requested	53
IX.	Conclusion	53

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

TABLE OF AUTHORITIES

Cases

Adickes v. S.H. Kress & Co., 398 U.S. 144 (1970) 22, 24
Ashcroft v. Iqbal, 556 U.S. 662 (2009) 5
Bell Atlantic Corp. v. Twombly, 550 U.S. 544, 570 (2007) 5
Blum v. Yaretsky, 457 U.S. 991 (1982) 6, 20
Burton v. Wilmington Parking Authority, 365 U.S. 715 (1961) 19
Coker v. Austin, 3:21-cv-1211, USDC, FLND (2022) 31
Daniels-Hall v. Nat'l Educ. Ass'n, 629 F.3d 992, 998-99 (9th Cir. 2010) 31
Evans v. Newton, 382 U.S. 296 (1966) 15
Ex Parte Virginia, 100 U.S. 339 (1879) 26
Flagg Bros., Inc. v. Brooks, 436 U.S. 160 17
Giron v. Corrections Corp of America, 14 F.Supp 2d 1245 (D.N.M. 1998) 13
Health and Hospital Corp of Marion Cty. V. Talevski __ US __ (2023) 43
Jackson v. Metropolitan Edison Co., 419 US 352 (1974) 17, 18, 19
Jacobson v. Massachusetts, 197 U.S. 11 (1905) 37, 38, 39, 40
Johnson v. Duffy, 588 F.2d 740 (9th Cir. 1978) 7, 20
Lee v. Katz, 276 F.3d 550 (9th Cir. 2002) 18
Lugar v. Edmondson Oil Co., 457 U.S. 922 (1982) 15, 21
Mack v. S. Bay Beer Distribs., Inc., 798 F.2d 1279, 1282 (9th Cir. 1986) 31
Maine v. Thiboutot, 448 U.S. 1 (1980) 34
Marsh v. Alabama, 326 U.S. 501 (1946) 16, 17
Modaber v. Culpeper Memorial, 674 F.2d 1023 (4th Cir. 1982) 19
Rawson v. Recovery Innovations, 975 F.3d 742 (9th Cir. 2020) 20, 22
S. Bay United Pentecostal Church v. Newsom, 985 F.3d 1128 (9th Cir. 2021) 31
Terry v. Adams, 345 U.S. 461 (1953) 13
U.S. v. Classic, 313 U.S. 299 (1941) 22, 26
U.S. ex rel. Modglin v. DJO Glob. Inc., 114 F. Supp. 3d 993 (C.D. Cal. 2015) 31
West v. Atkins, 487 U.S. 42 (1988) 22

Statutes

10 U.S.C. § 980 7, 43
21 U.S.C. § 321 29
21 U.S.C. § 355, *et seq*. 27, 31
21 U.S.C. §360bbb-3, et seq 6, 7, 13, 14, 16, 20, 21, 24, 28, 34, 35, 36, 40, 41, 42, 45
21 U.S.C. §360eee(4) 29
42 U.S.C. § 262 27, 31
42 U.S.C. §1983 7, 34
21 CFR 50, 56 23
45 CFR part 46 38

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

The Belmont Report 7, 43
Article VII of the ICCPR Treaty 7

Other Authorities

EUA Letter from FDA to Pfizer, August 23, 2021 10, 11, 12, 32

Proclamation 21-14.1 15

Washington Code, RCW 69.04.016 29

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

PLAINTIFFS' OPPOSITION TO MOTION TO DISMISS (ORAL ARGUMENT REQUESTED)

Plaintiffs respectfully file this Opposition to the Motion to Dismiss filed by the PeaceHealth[1] as follows:

I. INTRODUCTION

Defendants argue that Plaintiffs' claims contest whether Defendants could issue a vaccine requirement to its employees. However, Plaintiffs made it clear, in unambiguous language, that they only contest how the mandate was applied exclusively to the use of EUA and PREP Act medical products fully funded by the federal government under the CDC COVID-19 Vaccination Program. This case is not about a vaccine mandate. It is about an EUA/PREP Act drug mandate.

II. LEGAL STANDARD

A Complaint does not require detailed factual allegations; it simply must plead "enough facts to state a claim to relief that is plausible on its face." *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007). When considering a Rule 12 Motion

[1] Reference to "PeaceHealth" includes the individual and corporate PeaceHealth defendants.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

to Dismiss, the Court is required to accept Plaintiffs' factual allegations as true. *Ashcroft v. Iqbal,* 556 U.S. 662 (2009).

III. PEACEHEALTH'S LOGICAL FALLACIES

PeaceHealth builds its defense around four logical fallacies: (1) they are not State Actors, (2) drugs are governed by their formulation and not their labeling, (3) the EUA statute and PREP Act are not enforceable under § 1983, and (4) PeaceHealth has a right to issue a mandate relying on EUA/PREP Act drugs. Therefore, Plaintiffs will speak to these fallacies up front, resulting in a shorter response.

IV. STATE ACTOR

PeaceHealth's claim that it is not a state actor under the facts of this case is incorrect. "Faithful adherence to the 'state action' requirement of the Fourteenth Amendment requires careful attention to the gravamen of the plaintiff's complaint" (*Blum v. Yaretsky*, 457 U.S. 991, 1003 (1982)). The gravamen of Plaintiffs' Complaint is stated in clear, unambiguous language, "Plaintiffs' allegations herein only relate to Defendants mandating the use of drugs, biologics, and devices authorized under 21 U.S.C. §360bbb-3 and the PREP Act" (Doc 8, ¶ 20).

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

"Section 1983 provides, in pertinent part, that '[e]very person who, under color of any statute of any state . . ., subjects, or causes to be subjected, any…person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured . . .'" (42 U.S.C. § 1983.) *Johnson v. Duffy*, 588 F.2d 740, 743 (9th Cir. 1978).

A. State Action Background:

As Plaintiffs' Amended Complaint alleges, all COVID-19 vaccines were purchased by the federal government. (Doc 8, ¶ 38) According to the products' labeling, they were not FDA-licensed as a vaccine against COVID-19, thus the need for an emergency use authorization. The FDA even issued an EUA Scope of Authorization letter to Pfizer for a product named "Pfizer-BioNTech COVID-19 Vaccine" clarifying that the drug was "an investigational vaccine not licensed for any indication." (See Doc 8-4, p. 1, Last Sentence of Third Paragraph)

Therefore, because the drugs met the definition of "investigational" the federal executive branch was bound to 45 CFR Part 46, the Belmont Report, Article VII of the ICCPR Treaty, 21 U.S.C. §360bbb-3, 10 U.S.C. § 980, the federal constitution, and the PREP Act, among other laws. The federal executive branch established the CDC COVID-19 Vaccination Program Provider Agreement

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

(hereinafter referred to as "Program") so that these federally owned EUA/PREP Act products could be lawfully offered to the public. The CDC states that "this program is a part of collaboration under the relevant state, local, or territorial immunization's cooperative agreement with CDC. To receive one or more of the publicly funded COVID-19 vaccines (COVID-19 Vaccine), constituent products, and ancillary supplies at no cost, Organization agrees that it will adhere to the following requirements…" (Emphasis added). The CDC relied upon the voluntary participation of States because each state already had a Federal Wide Assurance[2] agreement in place requiring compliance with the same laws as a condition upon the State to access federally funded products.

Governor Inslee volunteered the State of Washington to participate in the Program and abide by its terms and conditions. The Washington State Department of Health established guidelines on how private parties could participate with the State to distribute the federally funded property. If PeaceHealth wanted to participate as an Organization under the Provider Agreement, its CEO and CMO had to sign the

[2] The State of Washington operates under FWA00000327.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

contract, and the Program required the following:

> (1) Organization must administer COVID-19 Vaccine in accordance with all requirements and recommendations of CDC and CDC's Advisory Committee on Immunization Practices (ACIP),
>
> (2) Within 24 hours of administering a dose of COVID-19 Vaccine and adjuvant (if applicable), Organization must record in the vaccine recipient's record and report required information to the relevant state, local, or territorial public health authority,
>
> (3) Organization must submit Vaccine-Administration Data through either (a) the immunization information system (IIS) of the state and local or territorial jurisdiction or (b) another system designated by CDC according to CDC documentation and data requirements,
>
> (4) Organization must not sell or seek reimbursement for COVID-19 Vaccine and any adjuvant, syringes, needles, or other constituent products and ancillary supplies that the federal government provides without cost to Organization,
>
> (5) Organization must administer COVID-19 Vaccine regardless of the vaccine recipient's ability to pay COVID-19 Vaccine administration fees,
>
> (6) Before administering COVID-19 Vaccine, Organization must provide an approved Emergency Use Authorization (EUA) fact sheet or vaccine information statement (VIS), as required, to each vaccine recipient, the adult caregiver accompanying the recipient, or other legal representative,
>
> (7) Organization's COVID-19 vaccination services must be conducted in compliance with CDC's Guidance for Immunization Services During the COVID-19 Pandemic for safe delivery of vaccines,

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

> (8) Organization must comply with CDC requirements for COVID-19 Vaccine management,
>
> (9) Organization must report moderate and severe adverse events following vaccination to the Vaccine Adverse Event Reporting System (VAERS),
>
> (10) Organization must provide a completed COVID-19 vaccination record card to every COVID-19 Vaccine recipient, the adult caregiver accompanying the recipient, or other legal representative. Each COVID-19 Vaccine shipment will include COVID-19 vaccination record cards,
>
> (11) Organization must administer COVID-19 Vaccine in compliance with all applicable state and territorial vaccination laws,
>
> (12) Organization must comply with all applicable requirements as set forth by the U.S. Food and Drug Administration, including but not limited to requirements in any EUA (under "conditions of authorization" in the EUA letter) that covers COVID-19 Vaccine.

As Plaintiffs alleged, the HHS Secretary is the only person authorized by Congress to authorize emergency use of unlicensed drugs and to establish the conditions under which such use can occur. (Doc 8, ¶¶ 51, 56) The Secretary issued an EUA letter containing the "Conditions of Authorization" to the respective manufacturers of the authorized products. (Doc 8, ¶¶ 30-32). As an example, after the FDA licensed Comirnaty®, the agency nevertheless issued an EUA for "Pfizer-BioNTech COVID-19 Vaccine" stating that "Emergency response stakeholders will

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

identify vaccination sites to receive authorized Pfizer-BioNTech COVID-19 Vaccine and ensure its distribution and administration, consistent with the terms of this letter and CDC's COVID-19 Vaccination Program."[3] The HHS Secretary defined an "emergency response stakeholder"[4] as "a public health agency and its delegates that have legal responsibility and…authority to administer, deliver, or distribute vaccine in an emergency situation." The HHS defined a "vaccination provider" as "the facility, organization, or healthcare provider licensed or otherwise authorized by the emergency response stakeholder (e.g., non-physician healthcare professionals, such as nurses and pharmacists pursuant to state law under a standing order issued by the state health officer) to administer or provide vaccination services in accordance with the applicable emergency response stakeholder's official COVID-19 vaccination and emergency response plan(s) and who is enrolled in the CDC COVID-19 Vaccination Program."[5] Therefore, the Governor and PeaceHealth were lawfully obligated to

---

[3] See Exhibit A, FDA's EUA Letter to Pfizer, Section O. For the reasons set forth in Footnote 22, Plaintiffs move this court to take judicial notice of the August 23, 2021, EUA letter from the FDA to Pfizer.

[4] See Exhibit A, Footnote 12

[5] See Exhibit A, Footnote 13.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

ensure that individuals considering the use of the federally funded property were informed of their lawful right to accept or refuse the product without consequence. Moreover, since the Program was operating under emergency conditions under the State's prerogative, and the products were federally funded, the Program must meet the stringent threshold of protecting individuals' Fourteenth Amendment rights. The State distributed the COVID-19 property on behalf of the federal government and then recruited private parties like PeaceHealth to perform the State's duties on its behalf, including obtaining an individual's legally effective informed consent and conducting research activities required of them by the federal government. (Doc 8, ¶ 74)

The Governor's office, through the Washington State Department of Health, established a process to recruit and identify vaccination providers. Once an entity was authorized by the State and the CDC, the HHS Secretary established the following mandatory condition:

> Emergency response stakeholders will ensure that vaccination providers within their jurisdictions are aware of this letter of authorization, and the terms herein and any subsequent amendments that might be made to the letter of authorization, **instruct them** about the means through which they are to obtain and administer the vaccine under the EUA, and ensure that the authorized labeling [i.e., Fact Sheet for Healthcare Providers

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

> Administering Vaccine (Vaccination Providers) and Vaccine Information Fact Sheet for Recipients and Caregivers] is made available to vaccination providers through appropriate means (e.g., e-mail, website).[6]" (Emphasis added).

The HHS Secretary established requirements for "vaccination providers" to conduct training, report adverse events, conduct patient follow-ups requested by the U.S. Government, "comply with CDC and/or emergency response stakeholder vaccine management requirements," and maintain administration records.[7]

However, the statutory conditions referenced above for Governor Inslee and those private parties he recruited to help the State distribute the federally owned property are in addition to the conditions required of the Program.

The State incorporated the CDC Vaccination Program Provider Agreement into its requirements as state policy when requiring any party to sign that agreement as a condition to engage in joint activity with the state. Therefore, the Agreement might have been written and secured by the CDC, but the terms and conditions were state policies since the signing of the contract was a condition of the State upon Defendants as a right to join it in distributing the federal property.

---

[6] See Exhibit A, Section P
[7] See Exhibit A, Sections R-W

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Upon agreeing to volunteer the State of Washington to distribute the federal government's COVID-19 property, Governor Inslee was then bound to apply the laws associated with the Program in accordance with the Fourteenth Amendment's fundamental Equal Protection, Due Process, Right to Privacy, and Excessive Fines Clause doctrines. Governor Inslee might have been empowered by the State Legislature to delegate the state function of distributing the federal COVID-19 property through authorized private parties, but he was not authorized to delegate that state function without also delegating the Constitutional obligations.[8] Therefore, the State cannot abdicate its statutory and Constitutional duties by delegating its functions to private parties. The State was not under lawful obligation to volunteer for the Program. It did so under its prerogative so that it and the private parties it authorized to participate could enjoy the rich cash infusion the Program promised them. However, once the State agreed to participate in the Program willfully, it

[8] In *Giron v. Corrections Corp. of America*, 14 F. Supp. 2d 1245 (D.N.M. 1998), the court stated, "If a state government must satisfy certain constitutional obligations when carrying out its functions, it cannot avoid those obligations and deprive individuals of their constitutionally protected rights by delegating governmental functions to the private sector. See *Terry v. Adams*, 345 U.S. 461, 73 S. Ct. 809, 97 L. Ed. 1152 (1953). The delegation of the function must carry with it a delegation of constitutional responsibilities."

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

surrendered its right to fail to perform the duties of the Program and to administer the program outside the Equal Protection and Due Process Fourteenth Amendment requirements.

It is black letter law that the Program, 21 U.S.C. §360bbb-3, its FWA, and the EUA letters required the State to ensure its citizens were afforded the lawful authority to either accept or refuse the administration of emergency use of the federal COVID-19 property. Moreover, the Supremacy Clause governing 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) and the express preemption language of the PREP Act restricted the State and any legal entity within the state from establishing conditions conflicting with the lawful rights of Plaintiffs to either accept or refuse the product. The U.S. Congress completely preempts the entire field of emergency use authorized products under 21 U.S.C. §360bbb-3 and "covered countermeasures" under the PREP Act.

PeaceHealth, an entity authorized by Washington State to conduct the State's business of administering the federally funded COVID-19 drugs, was bound as an

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

"Organization"[9] to inform any person under its authority of their lawful authority to accept or refuse the product. That legal right is held by Plaintiffs, not Defendants, and Defendants cannot cite a Constitution, statute, regulation, or proclamation, conferring upon them lawful authority to interfere in Plaintiffs' chosen option, either to accept or refuse. Moreover, because Defendants were acting under color of law on behalf of the State of Washington, they were bound to ensure Plaintiffs were treated equally before the law and in accordance with due process. Therefore, Defendants were bound to statutory duties, contractual obligations, and Constitutional requirements when administering the Program on behalf of the State.

PeaceHealth was under the authority and directive of the State, which volunteered to administer the federal government's property. Moreover, the federal government warned PeaceHealth that "Other possession, distribution, delivery, administration, shipment receipt, or use of COVID-19 vaccine **outside the parameters of the Program** constitutes, at a minimum, theft under 18 U.S.C. § 641, and violation of other federal civil and criminal laws." (Emphasis added).

---

[9] Defendants are PeaceHealth's PolicyMakers and are lawfully bound to ensure the organization complies with its lawful obligations.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Finally, the Governor created State Policy under Proclamation 21-14.1 prohibiting "Any Health Care Provider from failing to be fully vaccinated against COVID-19 after October 18, 2021." On October 18, 2021, no drug licensed by the FDA, according to the product's labeling that was also introduced into commerce for general commercial marketing, existed within the State of Washington, nor did such a drug exist through the effective period of the Proclamation. Therefore, all actions taken under the policy by Defendants to fulfill the Proclamation were in violation of federal law, and Plaintiffs' statutory and constitutional rights and the contested actions can be "fairly attributed to the State" *Lugar* v. *Edmondson Oil Co.*, 457 U.S. 922, 935, 937 (1982).

B. The Public Function Test

The public function test "when private individuals or groups are endowed by the State with powers or functions governmental in nature, they become agencies or instrumentalities of the State and subject to its constitutional limitations." *Evans v. Newton,* 382 U.S. 296, 299, 86 S.Ct. 486, 15 L.Ed.2d 373 (1966) The State,

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

traditionally and exclusively,[10] issues licenses to both medical facilities and healthcare workers. Moreover, the State determines the conditions and requirements under which that property will be issued and maintained. The State also performs the public function of managing emergency declarations, and such activities are exclusively under the State's prerogative. Lastly, only the State had the authority to determine how the public function of distributing the federal government's COVID-19 EUA drug property would be exercised, who could participate, and the conditions under which they could participate. Plaintiffs had a Fourteenth Amendment right to choose one of the two options under 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) without consequence, and the State and Defendants were bound by the Fourteenth Amendment, 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III), the CDC COVID-19 Vaccination Program, their FWA agreements, and the EUA letters to inform Plaintiffs of their lawful rights to accept or refuse participation and to treat each option equally and in accordance with due process. Moreover, Defendants willfully participated in the State Action.

---

[10] *Marsh v. Alabama,* 326 U.S. 501, 505-06, 66 S.Ct. 276, 90 L.Ed. 265 (1946)

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

The Public Function Test is met by (1) PeaceHealth exercising powers exclusively held by the State,[11] (2) the power is part of the State's prerogative[12] (the State did not have to volunteer to participate, and PeaceHealth PolicyMakers operate exclusively under the State's authority), and (3) the power is such that the State itself is obligated to perform due to Governor Inslee voluntarily agreeing to perform for the CDC.[13]

"Ownership does not always mean absolute dominion. . . . [Where] facilities are built and operated primarily to benefit the public . . . their operation is essentially a public function . . . subject to state regulation."[14] The use of PeaceHealth's organization serves a public function when they administer the federal COVID-19 property to the public and when they act upon emergency conditions issued by the State for the public's benefit. The State stated that its emergency declaration was meant to serve the public (1) "WHEREAS, to protect some of our most vulnerable populations—persons in health care facilities, long-term care facilities (which

---

[11] *Jackson v. Metropolitan Edison Co*., 419 U.S. at 352 (1974)
[12] *Flagg Bros., Inc. v. Brooks*, 436 U.S. at 160. See also *Jackson v. Metropolitan Edison Co*., *supra*.
[13] *Jackson v. Metropolitan Edison Co*., 419 U.S. at 353
[14] *Marsh v. Alabama,* 326 U.S. 501, 505-06, 66 S.Ct. 276, 90 L.Ed. 265 (1946)

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

includes nursing homes), and similar congregate care facilities—and to protect our health and congregate care systems themselves, I issued several proclamations imposing heightened protections on workers, residents, and visitors in those facilities," (2) "WHEREAS, it is the duty of every employer to protect the health and safety of employees by establishing and maintaining a healthy and safe work environment and by requiring all employees to comply with health and safety measures," (3) and as such, require "Any Health Care Provider from failing to be fully vaccinated against COVID-19 after October 18, 2021." Therefore, the function was the regulation of the emergency order under the Proclamation for the public's benefit.

The case "turns on what is quintessentially an exclusive and traditional public function" *Lee v. Katz*, 276 F.3d 550, 556-57 (9th Cir. 2002). Therefore, the State issuing emergency healthcare orders for the public's benefit is an exclusive and traditional public function of the State. Defendants regulated the employment of Plaintiffs on behalf of the State for purposes of serving a public function by requiring them to inject the federally owned COVID-19 property, which itself was a program under the State's prerogative serving a public function. "We have, of course, found state action present in the exercise by a private entity of powers traditionally

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

exclusively reserved to the State." *Jackson v. Metropolitan Edison Co.*, 419 U.S. 345 (1974)

C. The Symbiotic Relationship And Joint Activity Test

"A state becomes responsible for a private party's act if the private party acts (1) in an exclusively state capacity, (2) for the state's direct benefit, or (3) at the state's specific behest. It acts in an exclusively state capacity when it 'exercises powers traditionally exclusively reserved to the state[,]' *Jackson*, 419 U.S. 352, 95 S.Ct. 454; for the state's direct benefit when it shares the rewards and responsibilities of a private venture with the state, *see Id.*, *Burton v. Wilmington Parking Authority*, 365 U.S. 715, 723-24, 81 S.Ct. 856, 860-61, 6 L.Ed.2d 45 (1961); and at the state's specific behest when it does a particular act which the state has directed or encouraged." (*Modaber v. Culpeper Memorial Hospital, Inc.*, 674 F.2d 1023 4th Cir. 1982)

Therefore, these tests are met by Defendants (1) affirming they acted on behalf of Governor Inslee's Proclamation (State Policy) when discharging Plaintiffs refusing the administration of the federally funded property, (2) administered the COVID-19 Program on behalf of the State to share in the Program's cash flow benefiting the State and Defendants which required informing individuals of their

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

rights as a condition of the Program's process, (3) agreed to obtain the informed consent of individuals on behalf of the state which means the State and Defendants were required to create a legally approved environment ensuring Plaintiffs were under no outside pressure to participate in the Program's administration, (4) and the State engaged in the joint action of administering the federal government's COVID-19 property and fulfilling Proclamation 24-01.

PeaceHealth's PolicyMakers (Defendants) are duly authorized to conduct the affairs of the "Organization" and issue the COVID-19 Vaccine policy, empower others to execute the policy, and enforce the policy. The Ninth Circuit Court of Appeals held that "A person 'subjects' another to the deprivation of a constitutional right, within the meaning of section 1983, if he does an affirmative act, participates in another's affirmative acts, or omits to perform an act which he is legally required to do that causes the deprivation of which complaint is made" *Johnson v. Duffy*, 588 F.2d 740, 743 (9th Cir. 1978). Defendants failed to perform the acts required of them under the CDC COVID-19 Vaccination Program as a State Actor and under the EUA letters subject to 21 U.S.C. §360bbb-3, and under the Fourteenth Amendment. Moreover, they specifically issued, enforced, and encouraged PeaceHealth's Policy, which is the direct cause of injury to Plaintiffs and thus is

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

subject to § 1983 enforcement.

The Ninth Circuit also applies a "Governmental compulsion" test, "Governmental compulsion or coercion may exist where the State 'has exercised coercive power or has provided such significant encouragement, either overt or covert, that the choice must in law be deemed to be that of the State.' *Blum v. Yaretsky* , 457 U.S. 991, 1004, 102 S.Ct. 2777, 73 L.Ed.2d 534 (1982)" *Rawson v. Recovery Innovations, Inc*., 975 F.3d 742, 748 (9th Cir. 2020). Defendants affirm they acted under government compulsion when executing Proclamation 24-1 and discharging Plaintiffs from employment.

"The statutory scheme obviously is the product of state action, and a private party's joint participation with state officials in the seizure of disputed property is sufficient to characterize that party as a 'state actor' for purposes of the Fourteenth Amendment. Respondents were, therefore, acting under color of state law in participating in the deprivation of petitioner's property." *Lugar v. Edmondson Oil Co., Inc*., 457 U.S. 922 (1982) The *Lugar* court concluded that the private party acting in concert with the State official under a state policy meant the private party was a state actor. The facts in this case are identical insofar as Defendants engaged in joint action with Governor Inslee under a State policy in the deprivation of

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Plaintiffs Equal Protection and Due Process rights when denying them their legal interest under 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) and being treated equally under the law without losing the right to enjoy the privileges of employment in the healthcare industry. Moreover, the products were also listed as "covered countermeasures," requiring Plaintiffs to consent to the forfeiture of their due process rights to seek judicial relief from resulting injuries. As such, the compulsory requirement of the State policy to participate in those products stripped Plaintiffs of their due process rights which act was a violation of their substantive due process rights.

However, the Ninth Circuit makes it clear that "At bottom, the inquiry is always whether the defendant has 'exercised power' possessed by virtue of state law and made possible only because the wrongdoer is clothed with the authority of state law.'' *West v. Atkins*, 487 U.S. 42, 49, 108 S.Ct. 2250, 101 L.Ed.2d 40 (1988) (quoting *United States v. Classic* , 313 U.S. 299, 326, 61 S.Ct. 1031, 85 L.Ed. 1368 (1941)). *Rawson v. Recovery Innovations, Inc*., 975 F.3d 742, 748 (9th Cir. 2020). Defendants were clothed with the power of the State to engage in the federally funded program under the State's direct authority and under the State's Proclamation. Defendants' claim that they are not State Actors fails across any legal

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

lens upon which their actions are viewed.

However, because Defendants, like all other medical facilities within the State, had full legal authority to deny the application of the State Policy to the use of the federally owned COVID-19 drugs, Plaintiffs also assert that Defendants acted under State Custom. The Supreme Court noted in *Adickes v. S. H. Kress & Co*., 398 U.S. 144 (1970) that the "Petitioner will have established a claim under §1983 for violation of her equal protection rights if she proves that she was refused service by respondent because of a state-enforced custom…" (emphasis added).

All without fear of consequence from the State, PeaceHealth: (1) assured the federal government they would never place an individual under outside pressures to participate in a federally funded research activity via their FWA agreement nor under their contract with the Program (State Policy) but did so via their vaccine requirement; (2) signed the CDC COVID-19 Vaccination Program Provider Agreement promising to ensure Plaintiffs were given the option to accept or refuse, but removed that option via their Policy; (3) was required to obtain Plaintiffs' legally effective informed consent, but willfully ignored that duty; (4) was assigned an

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Institutional Review Board [15] requiring them never to place Plaintiffs under involuntary conditions when involved in INDs, but required compulsory participation under threat of penalty; (5) has no authority to amend the Scope of Authorization for each COVID-19 EUA drug, but amended the conditions by which the Scope of Authorization is lawful; (6) had no authority to establish conditions contrary to the CDC regarding its administration of the federally owned property, but ignored its duties under 12(a) of the Provider Agreement; (7) had no authority to establish conditions contrary to applicable requirements of any drug under an EUA, but ignored those applicable requirements; and (8) is restricted by the U.S. Congress from using any laws of the State or political subdivision of the State to interfere in the federal government's property by terminating Plaintiffs employment exercising a federally secured right to refuse participation in the product's administration, but used the State's at-will laws and the State custom to retaliate against Plaintiffs' choice of their federally secured option.

Therefore, Defendants deprived Plaintiffs of their legal rights by acting on a

---

[15] An IRB is required when PeaceHealth (1) conducts a clinical trial under 21 CFR Parts 50&56, which is not the case at bar, (2) administers an investigational new drug to only one patient under any provision of 21 U.S.C. §360bbb *et. seq*., which is the case at bar.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

State-enforced custom having the force of law outside of any lawful authority. Governor Inslee, Attorney General Bob Ferguson, and PeaceHealth's PolicyMakers, as a State Actor, established and enforced a state custom whereby a person's EUA and PREP Act statutory rights to refuse the federal property could be ignored "as if" they did not exist and that they could be treated differently under the Fourteenth Amendment than persons choosing the option to accept the administration of the federal property.

Plaintiffs were refused access to living wages and demoted to second-class citizenry because a State custom denying Plaintiffs their 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) rights had a force of law overriding the authority of the United States Constitution. Moreover, the Court held, "Based upon the language of the statute [sic] legislative history, and judicial decisions, the words 'under color of a . . . custom or usage, of [a] State,' in § 1983, mean that the 'custom or usage' must have the force of law by virtue of the persistent practices of state officials. (*Adickes, at* 162-169.") Although *Adickes* involved the state custom of racial discrimination, the precise custom is not the relevant point but rather the persistence of the custom or usage, no matter its name. The *Adickes* Court referenced one original Congressional supporter of § 1983, who stated, "[T]he chief complaint is not that

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

the laws of the State are unequal, but that, even where the laws are just and equal on their face, yet, by a systematic maladministration of them, or a neglect or refusal to enforce their provisions, a portion of the people are denied equal protection under them." The Court commented, "This interpretation of custom recognizes that settled practices of state officials may, by imposing sanctions or withholding benefits, transform private predilections into compulsory rules of behavior no less than legislative pronouncements." Governor Inslee and Defendants, acting under a State-enforced custom, usurped the federal government's authority, imposed sanctions, and withheld benefits as if that purported authority had legislative pronouncement.

Defendants discharged Plaintiffs from employment for violating a state-enforced custom, not federal or state law, nor PeaceHealth's vaccine policy, which might only be considered lawful when using FDA-approved drugs.

At all times pertinent, Governor Inslee could have issued an executive order requiring agency enforcement of State obligations required of PeaceHealth's PolicyMakers and other authorized private parties conducting state business, but he did not. At all times pertinent, Attorney General Bob Ferguson could have utilized the enforcement powers of his office to correct PeaceHealth's PolicyMakers and private parties the state authorized to administer the federal property but did not.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

PeaceHealth's Policymakers acted on this State-encouraged and enforced custom when engaging in their unlawful conduct, which led to the deprivation of Plaintiffs' statutory and Constitutional rights. "Misuse of power, possessed by virtue of state law and made possible only because the wrongdoer is clothed with the authority of state law, is action taken 'under color of' state law." *United States v. Classic*, 313 U.S. 299 (1941), *citing Ex Parte Virginia*, 100 U. S. 339, 100 U. S. 346 (1879).

As a matter of law, PeaceHealth's PolicyMakers could only establish a COVID-19 Vaccination Policy because the State agreed to administer the federal COVID-19 property in which it authorized Defendants to participate. Therefore, the State and PeaceHealth's PolicyMakers both conspired under a state custom to deprive Plaintiffs of their Constitutional and statutory rights and privileges because they were clothed with the authority of State Power.

Therefore, Plaintiffs dispute each claim described within Defendants motion to dismiss when they assert they were not a state actor or not engaged in state action.

V. COMIRNATY® V. PFIZER-BIONTECH COVID-19 VACCINE

Defendants' defense is built around a logical fallacy that the legally distinct drug, Pfizer-BioNTech COVID-19 Vaccine, is the same as Comirnaty® for purposes of law because the two allegedly share the same formulation. As a matter of law, the

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

drug's formulation has no relevance to the issues presented in Plaintiffs' Complaint. Drugs and biologics are governed according to their labeling and not their formulation. Once a label is applied to a drug vial, then it is eternally governed by that label, irrespective of a label attached to a different drug vial that might share the same formulation.

Comirnaty® is the FDA-approved[16] marketing name used on vials of Pfizer's FDA-approved COVID-19 drug called Comirnaty®, but not for the "Pfizer-BioNTech COVID-19 Vaccine." Only vials containing the formulation processed under the licensing requirements can bear the label "Comirnaty®." Comirnaty® is subject to strict standards, laws, and regulations governing how it can be manufactured, where, and what legal indications it can be prescribed and advertised for.[17] Unlike "Pfizer-BioNTech COVID-19 Vaccine," Comirnaty® had to meet the exacting standards under 42 U.S.C. § 262 and 21 U.S.C. § 355 before receiving

---

[16] FDA-approved means the label bears the name, indication, and usage approved under 21 USC § 355(a). Any drug vial not labeled as "Comirnaty®" is not approved for general commercial marketing and cannot operate under the laws governing an approved drug.

[17] Legal indication means the FDA-approved intended use of the drug. This includes factors such as age, gender, contraindications, warnings, etc. A drug cannot be marketed for an indication the FDA did not approve it for.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

marketing approval. This fact reveals why Comirnaty® had to receive an EUA for its unapproved use (age indication) despite sharing formulation with its unapproved labeled EUA drug. Should Pfizer promote the use of Comirnaty® for an indication (age) that it is not approved for simply because it shares formulation with its EUA version, then such promotion is deemed misbranded, constituting a felony.[18]

Pfizer-BioNTech COVID-19 Vaccine is an investigational new drug under IND 19736 and was authorized only for emergency use pursuant to 21 U.S.C. §360bbb-3. Comirnaty® must be manufactured only at sites listed on its BLA, whereas the EUA drug must be manufactured at sites designated by the federal government, and the two manufacturing processes are not identical in nature. The EUA drug cannot bear the Comirnaty® label and vice versa. Should Defendants place the Comirnaty® label on a vial containing the Pfizer-BioNTech COVID-19 Vaccine, they would be subject to civil and criminal prosecution. Should Pfizer treat

---

[18] In 2009, the FDA charged Pfizer with a felony for promoting four drugs outside of their legal indication and fined them over $1.19 billion. The Department of Justice noted, "Under the provisions of the Food, Drug and Cosmetic Act, a company must specify the intended uses of a product in its new drug application to FDA. Once approved, the drug may not be marketed or promoted for so-called "off-label" uses – i.e., any use not specified in an application and approved by FDA. - Justice Department Announces Largest Health Care Fraud Settlement in Its History. Justice.gov. Published September 2, 2009. Accessed June 6, 2023.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

its unapproved EUA drug as approved, then it too would be subject to civil and criminal prosecution. Comirnaty® cannot come under the EUA statute for its licensed use,[19] whereas the Pfizer-BioNTech COVID-19 Vaccine can never come under any licensed use. The medical profession is allowed to use Comirnaty® for "off-label" uses, whereas they can never use Pfizer-BioNTech COVID-19 Vaccine for uses not intended under the emergency declaration. Pfizer-BioNTech COVID-19 Vaccine is not identical to Comirnaty® because a drug is more than its formulation; it is manufacturing, regulations, treaties, import/export laws, federal laws, state laws, insurance regulations, and a plethora of other legal factors all attached to one indisputable fact, its labeling. Comirnaty® has a different label than Pfizer-BioNTech COVID-19, and those labels are attached to entirely different sets of laws for very specific purposes as established by valid acts of Congress spanning 120 years of legislative activity. Moreover, once an emergency declaration has ended, the Pfizer-BioNTech COVID-19 vaccine cannot be utilized in the

[19] 21 U.S.C. §360bbb-3(c)(3)

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

marketplace as an approved drug, nor can the Comirnaty® label be attached to the product.[20]

Nearly all US States have misbranding laws, such as Washington State under RCW 69.04.016. Misbranding laws are applicable not only to the labeling on the vial but also to the boxes in which the vials are shipped and any documentation, promotion, and advertising associated with the product.[21] Defendants were careful not to state that the EUA drugs were approved by the FDA, only that Pfizer's two drugs shared formulation. However, the wording was designed to mislead, not to inform the end user, that the legal distinctions between the two drugs have legal consequences for the end user, as previously discussed. (Doc 8, ¶ 163).

Therefore, as a matter of law, all vials of the Pfizer-BioNTech COVID-19 Vaccine were manufactured, distributed, administered, and regulated under laws governing the use of unapproved drugs. On August 23, 2021, when FDA approved the marketing application for Comirnaty®, the laws applicable to Pfizer-BioNTech COVID-19 Vaccine remained the same. Nothing changed for the EUA version since

---

[20] 21 U.S.C. §360bbb-3(b)(2)(B) disposition is defined under 21 U.S.C. § 360eee(4)
[21] 21 U.S.C. § 321

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

it was not manufactured, distributed, or administered under the BLA requirements of Comirnaty®. The FDA, CDC, HHS, and all other persons continued under the laws governing the unapproved use of the Pfizer-BioNTech COVID-19 Vaccine despite another legally distinct drug sharing the same formulation being approved on paper.

Should this court rule that the two drug labels are not legally distinct, even though such a ruling would conflict with FDA's own documentation, it would have to enjoin the FDA, CDC, HHS, and the entire medical community from treating Pfizer-BioNTech COVID-19 Vaccine as an investigational new drug, which means it would also have to enjoin the HHS from issuing additional EUAs for the COVID-19 pandemic and to terminate all current EUAs. Moreover, it would require writing legislation and voiding volumes of U.S. Code, drug regulations, and international laws governing their import and export. Though such a statement appears nonsensical at first blush, this is precisely what Defendants are requesting of this court in their Motion to Dismiss. Essentially, Defendants ask this court to rule that drug labeling laws no longer have effect when stating that "The Pfizer-BioNTech vaccine authorized for EUA use and Comirnaty® were identical vaccines, and

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

accordingly a fully FDA-authorized vaccine was publicly available to individuals 16 or older as of August 23, 2021." (Doc 30, p. 19, lines 4-6)

Plaintiffs move this court to take judicial notice of the declaration provided by Peter Marks, Director of the Center for Biologics Evaluation and Research ("CBER"), United States Food and Drug Administration ("FDA"), in *Coker v Austin*, 3:21-cv-1211, USDC, FLND (2022), stating that "Vaccines are approved for marketing through applications known as Biologics License Applications ("BLA"); a vaccine that is the subject of an approved BLA need not also obtain approval of a new drug application ("NDA") under 21 U.S.C. § 355. 42 U.S.C. § 262(a), (j)."[22] "Additionally, FDA determined that '[t]he licensed vaccine has the same formulation as the EUA-authorized vaccine and the products can be used

---

[22] See Exhibit B, Marks Declaration. Judicial notice is proper where the evidence "is not subject to reasonable dispute[.]" Fed. R. Evid. 201(b). Under this doctrine, a court on a motion to dismiss may consider, among other evidence, "records and reports of administrative bodies," *Mack v. S. Bay Beer Distribs., Inc.*, 798 F.2d 1279, 1282 (9th Cir. 1986), *abrogated on other grounds by Astoria Fed. S&L Ass'n v. Soimino*, 501 U.S. 104 (1991), the content of state and federal regulations, *S. Bay United Pentecostal Church v. Newsom*, 985 F.3d 1128, 1132 (9th Cir. 2021), *vacated on other grounds*, 141 S. Ct. 2563 (2021), and public records and government documents available from reliable sources on the Internet, *U.S. ex rel. Modglin v. DJO Glob. Inc.*, 114 F. Supp. 3d 993, 1008 (C.D. Cal. 2015), *aff'd sub nom. United States v. DJO Glob., Inc.*, 678 F. App'x 594 (9th Cir. 2017); *Daniels-Hall v. Nat'l Educ. Ass'n*, 629 F.3d 992, 998-99 (9th Cir. 2010) (taking judicial notice of information on the websites of two school districts).

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

interchangeably to provide the vaccination series without presenting any safety or effectiveness concerns.'" *Id*. "FDA provided this information in the authorization letter to make clear that pharmacies and other healthcare practitioners could provide the vaccination series to recipients using Pfizer- BioNTech, Comirnaty®, or both (e.g., first dose of Pfizer-BioNTech followed by second dose of Comirnaty®, or vice versa), since the formulation was the same and both products are made by the same manufacturer under current good manufacturing practice requirements. FDA included the interchangeability information in the authorization letter to avoid the unnecessary operational complications that may have resulted if pharmacies or other healthcare practitioners had believed that individuals who had received Pfizer-BioNTech for the first dose were not authorized to receive Comirnaty® for the second dose, or vice versa. While FDA determined Comirnaty® and the Pfizer-BioNTech Covid- 19 vaccine **are medically interchangeable**, **there are legal distinctions between BLA-approved and EUA-authorized products.** For example, products approved under BLAs are required to have the labeling that was approved as part of the BLA, whereas products authorized under the EUA would have the EUA labeling, and there may also be differences in manufacturing sites for the BLA and EUA vaccine." (Emphasis added). This fact is why the FDA informed

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

the public in its August 23, 2021 EUA letter that Pfizer's two products "are legally distinct."[23]

Therefore, it is a logical fallacy for Defendants to claim that because Comirnaty® shares the same formulation with Pfizer-BioNTech COVID-19 Vaccine, they also share the same labeling operating under the same laws. Defendants want the court to rule in this manner because it is the hinge upon which they defend their unlawful activity. If the Pfizer-BioNTech COVID-19 Vaccine investigational new drug was lawfully considered an approved drug, then there would be no need to approve Comirnaty®; Pfizer could continue manufacturing and distributing Pfizer-BioNTech COVID-19 Vaccine. Should a person seek legal action against Pfizer for an adverse event, the court would not, and could not, allow a Plaintiff to use laws associated with Comirnaty® if the Plaintiff was administered Pfizer-BioNTech COVID-19 Vaccine simply because it shared formulation with Comirnaty® because the two drugs do not share the same laws. Such facts reveal the nonsensical nature of Defendants' claim. However, Defendants are legally

---

[23] See Exhibit A.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

sophisticated in drug labeling laws since they dispense them hourly across the nation. Moreover, they have been involved in millions of dollars of medical research for decades using the same laws governing Pfizer-BioNTech COVID-19 Vaccine. Plaintiffs cannot cite to a federal statute affording them authority to dispense an investigational drug outside of the strict federal guidelines, none of which allows them to treat the investigational new drug classification as an approved drug. However, Defendants do present their claim as being "plainly incompetent," which nullifies their qualified immunity claim (*Malley v. Briggs*, 475 U.S. 335, 341 (1986)). Therefore, Plaintiffs dispute each allegation by Defendants when they claim or imply that they could require compulsory use of the FDA-classified investigational new drug, Pfizer-BioNTech COVID-19 Vaccine, under their vaccine requirement because it shared formulation with Comirnaty®.

VI. 21 U.S.C. §360bbb-3 UNDER § 1983

Defendants assert throughout their motion that "there is no private right of action under Section 360bbb-3" (Doc 30, p. 16). First, "private right of action" is not synonymous with "§1983 cause of action." Second, Plaintiffs are not aware of any court holding that 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) is not enforceable under § 1983 enforcement, and Defendants cited to no cases to support their claim.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Defendants cite cases holding that there is no private right of action under the statute to seek judicial relief, which is not the same thing as saying that there is no action under 42 U.S.C. § 1983 for violations of the rights created for Plaintiffs under 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) by a valid act of Congress. It is well-established U.S. Supreme Court precedent that a federal statute creating a right for an individual in unambiguous language is enforceable under 42 U.S.C. § 1983 (*Maine v. Thiboutot*, 448 U.S. 1 (1980)). 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) creates a right for individuals considering participation to either accept or refuse the products under autonomous conditions free from outside pressures. The statute does not create a right for Defendants to interfere in the freely chosen option of Plaintiffs. Rather, it restricts that interference by restricting the Secretary from having the authority to require any person to participate in any activity the Secretary authorizes. Defendants claim that 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) is not enforceable under a § 1983 cause of action fails. Therefore, Plaintiffs dispute each allegation by Defendants when they assert that 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) is not enforceable under § 1983.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

VII. DEFENDANTS' ARGUMENTS

Defendants assert an outrageously false claim that Plaintiffs did not seek an exemption when, in fact, Plaintiffs hold in their possession letters issued by PeaceHealth to Plaintiffs denying them their exemption requests. (Doc 30, p. 1) Plaintiffs did not attach these letters to their Complaint, but they easily can, or they can be produced in discovery.

Defendants state, "Plaintiffs do not allege that they requested medical or religious exemptions to PeaceHealth's COVID-19 vaccine requirement." (Doc 30, p. 11) Even though Plaintiffs did seek exemptions, which were denied, this is not a Title VII case, nor is it an ADA case. This is a § 1983 case. As such, it is irrelevant whether Plaintiffs requested an exemption because the EUA statute and the PREP Act do not grant Defendants the authority to place a condition upon Plaintiffs who refuse investigational EUA/PREP Act drugs.

Defendants' claim that "Plaintiffs fail to state a claim under 42 U.S.C. § 1983" fails for reasons described above and in the Complaint. (Doc 30, p. 12)

Defendants' claim that "There is no right to employment at a healthcare facility while refusing vaccination" might be true. However, this is not a vaccine mandate case. This is an EUA/PREP Act drug mandate case. There is no right of a

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

healthcare facility to require the use of an unlicensed drug according to its labeling, and such a right to refuse the EUA drug is under 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) and thus Defendants unlawfully terminated employees exercising a legal right.(Doc 8, ¶ 249).

Defendants' assertion that "Plaintiffs' Section 1983 claims all rely on the proposition that Plaintiffs have a federally protected right to employment at PeaceHealth while refusing the COVID-19 vaccine" invents an argument that Plaintiffs did not make and provides no clarity to this court because Defendants apply "the COVID-19 vaccine" to both approved and unapproved drugs. (Doc 30, p. 13) To be clear, Plaintiffs have never alleged a federally protected right to employment at PeaceHealth. Plaintiffs have alleged a federally protected right to refuse an EUA/PREP Act drug without penalty. PeaceHealth has a Federal Wide Assurance agreement promising the federal government they would never subject persons to the compulsory use of an investigational new drug. They are required to adhere to an Institutional Review Board governing that drug classification, and they signed the CDC Provider Agreement (Doc 8-1) promising to inform Plaintiffs of their lawful rights to accept or refuse the federally funded investigational drugs.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Plaintiffs dispute PeaceHealth's claims about vaccinations on page 13 of their Motion to Dismiss for reasons that this is not a vaccine mandate case. This is an EUA/PREp Act investigational drug mandate case. Investigational new drugs and countermeasures under the PREP Act cannot come under compulsory use. The cases cited by PeaceHealth speak to vaccine mandates relying on FDA-approved drugs, not EUA/PREP Act drugs having specific laws providing Plaintiffs the irrefutable right to refuse without consequence.

Defendants' reliance upon *Jacobson v. Commonwealth of Massachusetts, 197 U.S. 11 (1905),* is also misplaced. *Jacobson* is distinguishable in three major ways. First, *Jacobson* involved a question of whether a State has the power to implement and enforce a vaccine mandate involving an approved vaccine. The case at bar is not about that. This case is about a State Actor hospital that signed a contract entering into a collaboration with the federal and state governments and agreed to protect the rights of anyone considering one of the EUA/PREP Act COVID investigational drugs but instead violated those very rights as well as Constitutional rights and contractual rights of the Plaintiffs herein, all of which caused economic, emotional, and psychological damages. So, factually, *Jacobson* is inapposite.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Second, *Jacobson* involved an approved vaccine, whereas the case at bar involves an EUA/PREP Act investigational drug that "is not licensed for any indication."[24] Since the 1905 decision in *Jacobson*, Congress passed the Emergency Use Authorization statute, which indisputably applies to the products PeaceHealth Defendants were authorized to administer, and did not apply to the smallpox vaccine in *Jacobson*. Yet, PeaceHealth Defendants urge this court to ignore the provisions of the very statute that allowed the EUA COVID injections to be administered and instead reach back 118 years to a case that addresses a different issue.

This is a critical issue and one that everyone seems to lose sight of…the case at bar involves EUA investigational drugs that have their own law applicable to them. The words in that statute need to be given the weight they deserve and to which they are entitled under the rules of statutory construction of giving effect to every word Congress used in a statute. Provisions may not be written out or ignored. Ironically, *Jacobson* addressed that very issue when it stated: "'All laws,' this court has said, 'should receive a sensible construction. General terms should be so limited in their application as not to lead to injustice, oppression, or an absurd consequence."

---

[24] Doc 8, ¶¶ 30, 37 See also Exhibit __..

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Jacobson v. Commonwealth of Massachusetts, 197 U.S. 11, 25 S.Ct. 358, 49 L.Ed. 643, 3 Ann.Cas. 765 (1905)

Third, *Jacobson* did not issue a blanket pronouncement that all medical mandates by the government are Constitutional. Instead, to determine whether the mandate was proper, the *Jacobson* Court focused on whether the mandate was "arbitrary or oppressive." When Mr. Jacobson refused an approved vaccine that had been used "for nearly a century" to help provide protection from smallpox, a disease that was killing 1 out of every 7 people who got infected, he was fined $5 (roughly $175 today). That is not arbitrary or oppressive. In the case at bar, however, individuals have lost their careers, seniority, earnings, benefits, and work relationships when they exercised their federal statutory right to refuse an EUA/PREP Act investigational drug that "is not licensed for any indication," and that was invented and manufactured and never used on human beings until about a year before this mandate, and whose manufacturer (Pfizer) reported to the FDA that its drug has known side effects of myocarditis and pericarditis, all for a disease that has a 99.95% survival rate. That is extremely arbitrary and oppressive.

Most people can understand and accept a fine of $175, but reasonable persons cannot understand and accept penalties that include loss of one's earnings and

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

insurance benefits, along with seniority, with careers literally being destroyed or thrown so far off the path that it is almost impossible to start over, and when PeaceHealth Defendants add in a dose of public humiliation and embarrassment, ostracization, invasive nasal swab testing (another EUA and PREP Act product), PeaceHealth's actions are so far beyond oppressive that the *Jacobson* court, which already had two dissenting judges, would likely have been decided differently. Plaintiffs assert that *Jacobson* has no relevance to the case at bar because Congress has spoken since 1905, and they created rights for individuals giving them the authority to accept or refuse, without penalty, a drug, biologic, or device under 21 U.S.C. §360bbb-3 authorization.

Plaintiffs dispute Defendants' claims on page 14 of their Motion to Dismiss on the grounds that investigational new drugs and countermeasures under the PREP Act cannot come under compulsory use.

Plaintiffs dispute Defendant's claims on page 15 of their Motion because any drug under EUA status cannot come under compulsory use specifically because Congress restricted the only person (HHS Secretary) authorized to grant expanded access protocols for the unlicensed use of drugs during a declared emergency from

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

requiring such compulsory requirement. Defendants cite no statute granting them authority to require that which Congress prohibits.

Plaintiffs dispute Defendants' claim on page 15 of their Motion that "21 U.S.C. § 360bbb-3 Is Inapplicable and Confers No Actionable Right" for reasons discussed above.

Defendants claim on page 16 that "Section 360bbb-3 does not apply to PeaceHealth in its capacity as a private employer" fails because they have a signed contract requiring the "Organization" (i.e., PeaceHealth) to adhere to the terms of the statute; they were only authorized by the State to conduct state business on the basis of the organization adhering to the statute; private employers are not authorized to interfere in the affairs of the EUA statute under the Supremacy Clause and express preemption language of the PREP Act; and by volunteering to administer the COVID-19 Vaccine, the "Organization" under the statute had to ensure all persons under its authority were informed of their lawful rights to accept or refuse the EUA product as discussed above.

Defendants' assertion on page 17 that "45 C.F.R. § 46 is inapplicable and confers no right" fails because the regulations were adopted at the express request of the United States Congress under the 1974 National Research Act. These

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

regulations are incorporated within the CDC COVID-19 Vaccination Program, require adherence of the entire federal government, and the State of Washington and PeaceHealth promised to abide by these regulations whenever they involve a human in a federally funded investigational drug (Pfizer-BioNTech COVID19-Vaccine).

Defendants claim on page 17 that the FWA is inapplicable fails because the federal government required research activities of the State and the State required them of PeaceHealth when administering the CDC COVID-19 Vaccination Program as outlined in the CDC contract, EUA letters, and under 21 U.S.C. §360bbb-3.

Defendants citing the *Bridges v. Houston Methodist Hosp* case is inapplicable. *Bridges* was an action for state law causes of action for wrongful termination and seeking application of the *Sabine Pilot* exception to Texas' at-will employment doctrine, along with *declaratory and injunctive relief* brought by hospital employees who questioned a vaccine mandate's legality under two federal laws, 21 U.S.C. 360bbb-3 (the EUA Statute) and 45 CFR 46 (the Common Rule). The *Bridges* trial court ruled against Plaintiffs on all three counts. The *Bridges* plaintiffs only appealed the issue related to the *Sabine Pilot* public policy exception to Texas' at-will employment doctrine, which states that it is wrongful to terminate an employee for the employee's refusal to perform an illegal act. The Fifth Circuit agreed with the

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

trial court's determination that taking a COVID-19 drug, EUA or otherwise, is not an illegal act and thus not a violation of federal law and thus not an exception to the Texas at-will employment doctrine.

Plaintiffs at bar do not disagree with those holdings. But the *Bridges* case is not the case at bar. This is a § 1983 case for damages actually incurred, not for injunctive relief. Moreover, this case does not challenge a vaccination mandate; it challenges an EUA/PREP Act investigational drug mandate. The duties that are at issue between the parties in the case at bar arise from PeaceHealth's voluntary decision to sign a contract with the federal and state governments to serve as an Organization obligated to administer EUA investigational drugs in compliance with a number of applicable federal statutes and regulations. The contract, the Provider Agreement, created rights and obligations between Plaintiffs and PeaceHealth Defendants outside of the rights that already existed vis-a-vis the employment relationship. But that does not make the contractual rights any less enforceable. Ultimately, PeaceHealth Defendants breached their contractual duties to Plaintiffs as third-party beneficiaries under the Provider Agreement when PeaceHealth Defendants used their position as an employer to penalize Plaintiffs for exercising a federal statutory right.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Plaintiffs dispute Defendants' claims on page 17 for reasons discussed above.

Defendants claim on page 18 that the Belmont Report is not applicable because it is not a regulation. That argument fails because 45 CFR Part 46 requires adherence to the Belmont Report for any person under the regulation. Moreover, the Spending Clause Doctrine affirmed in *Health and Hospitals Corp of Marion Cty. v. Talevski, 599 U.S. __ (2023)* provides a § 1983 cause of action because of the duties the Belmont Report places upon Defendants through 45 CFR Part 46 when using federal funding to involve humans in an investigational new drug, such as those under Defendants compulsory mandate.

Defendants knew or should have known that the EUA letters required research activities of them, and an intentional failure to comply is an act of fraud against the federal government as outlined in the Provider Agreement.

Defendants fail in their claim that 10 U.S.C. § 980 does not provide a cause of action under § 1983. The DoD purchased 100m doses of "Pfizer-BioNTech COVID-19 Vaccine" (i.e., the EUA/PREP Act version) for distribution among the states requiring a person's informed consent because the drug was fully funded by the federal government. The spending restriction and Plaintiffs' rights to give informed consent under that funding are enforceable under § 1983.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Plaintiffs dispute page 20 through 26 for reasons discussed above.

Defendants' statement on page 26 that Plaintiffs claiming the drugs in question were investigational is "demonstrably false" fails. The FDA itself uses the word "investigational" when writing to Pfizer, the manufacturer of the drug. So, PeaceHealth Defendants are disputing the FDA's classification of the EUA drugs, not the Plaintiffs' opinion.

Plaintiffs dispute Defendants' claim on page 27 that PeaceHealth's vaccination requirement does not violate the UCD doctrine. First, Defendants treated persons choosing the statutory option to accept differently than persons choosing the option to refuse, violating fundamental Constitutional rights contained in the Equal Protection Clause. Second, Defendants stripped Plaintiffs of their interest in their legal rights under the EUA statute while acting under color of law when acting on the state policy violating Plaintiffs substantive due process rights. Third, Defendants required Plaintiffs to surrender their right to seek judicial relief prospectively should they incur injury from the compulsory use of a listed countermeasure under the PREP Act, which is a violation of Plaintiffs substantive due process rights.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Defendants claim on page 28 that their policy did not violate the Equal Protection Clause fails for the reasons mentioned above. Moreover, the suspect class is any healthcare worker exercising their 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) option to refuse.

Plaintiffs dispute Defendants' claim on page 29 that their policy did not violate the Due Process Clause fails for the reasons mentioned above.

Defendants claim: "All of Plaintiffs' allegations focus on federal funding PeaceHealth received in relation to vaccine administration, not implementing its vaccine policy for employees." That claim is not supported by Plaintiffs' allegations. None of Plaintiffs' allegations focus on what PeaceHealth received. Plaintiffs only speak to federal funding as it relates to the federal government purchasing all of the EUA/PREP Act COVID-19 drugs. Moreover, the federal government, the State of Washington, and PeaceHealth were all required to obtain Plaintiffs' "legally effective informed consent," which means they had to create a legally approved environment ensuring that Plaintiffs were free from outside pressures when considering whether to take the drug.

Defendants' claim on page 31 that Plaintiffs' "breach of contract claim fails" is incorrect because Plaintiffs are third-party beneficiaries under the Provider

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Agreement and thus have standing to bring a claim for breach of that contract. Defendants claim that Plaintiffs are not third-party beneficiaries to the contract, but that argument fails because line 12(a) of the Provider Agreement requires explicit adherence to 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III), which provides a very specific right to Plaintiffs to choose freely whether to use the EUA/PREP Act product. PeaceHealth cannot mandate that Plaintiffs enter into a contractual relationship with manufacturers under 21 U.S.C. §360bbb-3 and the PREP Act and also require them to involuntarily surrender their due process rights to seek judicial relief from Program injury as a condition to maintain employment.

Defendants claim on page 33 that Washington State employment torts are not applicable fails when one reads paragraph 249 of Plaintiffs' Amended Complaint (Doc 8) and supporting case law.

Defendants claim that the tort of outrage fails because PeaceHealth signed multiple agreements with the federal government and State of Washington and knew they could not require someone to inject an EUA/PREP Act drug into their bodies as a condition of their employment. Pretending otherwise is outrageous. Moreover, PeaceHealth's complete disregard for the rights of their employees and potential patients is unheard of in modern-day society. Additionally, trying to justify their

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

actions by claiming they were trying to protect patients, visitors, and staff is equally outrageous after August 5, 2021, the date the CDC admitted that the COVID-19 "vaccines" did not, after all, prevent transmission or infection. Requiring Plaintiffs to inject an EUA/PREP Act drug that does not do what it was designed to do is outrageous.

PeaceHealth claims on page 35 that it had a right to know if Plaintiffs engaged in the unlicensed use of investigational new drugs because they work in a healthcare setting, and then they cite to vaccine mandate cases, not EUA/PREP Act drug mandate cases. PeaceHealth does not require healthcare works to disclose to patients whether the healthcare worker has herpes or some other communicable disease. So, there is no authority to make workers disclose whether they have been injected with a drug that the CDC admits does not prevent transmission or infection.

On page 36, Defendants dispute Plaintiffs' defamation claim on the grounds that Defendants spoke the truth. Telling the State Employment Security Department that Plaintiffs engaged in misconduct when their only conduct was exercising a federal statutory right is not speaking the truth. It is telling a lie. It is defamation that resulted in direct financial loss to Plaintiffs who were refused benefits on those grounds.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

As an alternative claim, Plaintiffs assert a private right of action under 21 U.S.C. §360bbb-3 (separately from a cause of action under 42 U.S.C. § 1983 for violation of the created rights under that same statute). There is no difference in circumstances for the 21 U.S.C. §360bbb-3 statute than there was for Title VI when the courts conferred an implied private right of action on those types of claims.

VIII. ORAL ARGUMENT REQUESTED

Plaintiffs believe oral argument would be helpful and hereby request same.

IX. CONCLUSION

For the reasons set forth above, Plaintiffs urge the court to deny PeaceHealth's Motion to Dismiss, in its entirety.

RESPECTFULLY SUBMITTED,

I certify that this motion contains 10,196 words, in compliance with the Local Civil Rules.

Date: 1/4/24

SCHEXNAYDRE LAW FIRM

BY: /s/ *David J. Schexnaydre*
DAVID J. SCHEXNAYDRE, T.A.
Louisiana Bar Roll #: 21073
2895 Highway 190 • Suite 212
Mandeville, Louisiana 70471
Telephone: (985) 292-2020
Fax: (985) 235-1089
Email: david@schexnaydre.com
Lead Counsel for Plaintiffs-*Pro Hac Vice*

And

/s/ Charice Holtsclaw
CHARICE HOLTSCLAW, ESQ.
WSBA# 53850
301 Prospect St.
Bellingham, WA 98225
Phone:(360)639-3393/(816)842-6700
Email: holtsclaw.law@gmail.com
Local Counsel for Plaintiffs